

GHANA ARBITRATION AND COMMERCIAL LAW REVIEW

How to Advocate Effectively in Arbitration
Moots and the Role of the Arbitrator



CENTER FOR INTERNATIONAL
MEDIATORS AND ARBITRATORS



THE GIMPA
MOOT SOCIETY



Lex Mundus
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How to Advocate Effectively in Arbitration Moots and the Role of the Arbitrator

Insights for Young Arbitrators and Moot participants

Introduction

International arbitration moots are practical simulations of real arbitral proceedings. Excellence in moots is achieved not only through persuasive legal arguments, but through procedural discipline, structured submissions, and respect for arbitral authority.

A central feature of this process is the preparation and submission of memorials, which often determine the trajectory of the case even before the oral hearing.

This brief sets out seven key procedural insights, including practical guidance on memorial preparation, alongside the corresponding role of the sole arbitrator.

1. Procedural Orders Are the Framework of the Case

For Counsel:

Treat procedural orders as binding directions, not suggestions. Memorial length, formatting, deadlines, and filing methods must be followed strictly.

For the Sole Arbitrator:

Issue procedural orders that are clear, balanced, and realistic, particularly on memorial timelines.

Key Insight:

Procedure provides certainty and discipline to the arbitral process.

2. Jurisdiction Comes Before Merits

For Counsel:

Your memorial should address jurisdiction as a distinct and early section. Do not assume jurisdiction is agreed simply because arbitration has commenced.

For the Sole Arbitrator:

Examine jurisdiction carefully, even where parties appear aligned.

Key Insight:

A tribunal must be properly constituted before it can decide anything else.

3. Memorials Are the Primary Advocacy Tool

For Counsel:

Memorials should be:

Logically structured

Concise and clearly reasoned Fully referenced to the record and authorities

Procedurally compliant in form and length

Avoid rhetorical excess. Precision is more persuasive than volume.

For the Sole Arbitrator:

Memorials frame the issues for determination. A well-written memorial enables focused hearings and efficient deliberation.

For the Sole Arbitrator:

In arbitration, the case is largely built in the memorials.



4. Evidence Must Be Properly Introduced Through Memorials

For Counsel:

All evidence should be clearly identified, explained, and linked to specific claims or defences within the memorial. Unsupported documents carry little weight.

For the Sole Arbitrator:

Assess admissibility and weight in light of procedural fairness and relevance.

Key Insight:

Evidence speaks through the memorial, not in isolation.

5. Time and Page Limits Reflect Professional Judgment

For Counsel:

Respect page limits. Overlong memorials often obscure strong arguments. Prioritise issues that are legally and factually decisive.

For the Sole Arbitrator:

Page and time limits help maintain equality of arms and procedural economy.

Key Insight:

Discipline in presentation reflects mastery of the case.

6. The Sole Arbitrator as Procedural Manager and Neutral Decision-Maker

For Counsel:

Respond directly to questions from the arbitrator and be prepared to clarify memorial arguments during the hearing.

For the Sole Arbitrator:

Guide proceedings firmly but fairly, ensuring each party has a meaningful opportunity to be heard.

Key Insight:

Procedural authority underpins arbitral legitimacy.



7. Procedural Fairness Safeguards the Award

For Counsel:

Ensure procedural compliance even when strategic advantage is tempting. Fairness strengthens credibility.

For the Sole Arbitrator:

Uphold due process consistently to protect the enforceability of the award.

Key Insight:

A procedurally sound process is the foundation of a defensible award.



Conclusion

Memorials are the backbone of international arbitration moots. They discipline argument, structure evidence, and guide arbitral decision-making. For new arbitrators and advocates alike, procedural excellence especially in memorial preparation signals professionalism and respect for the arbitral process.

Prepared by the Center for International Arbitration Moots Committee

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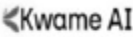
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